



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session
Majority Research Staff

HB 2457: public utilities; plant construction; colocation

KOLODIN FLOOR AMENDMENT

1. Removes the requirement for the Arizona Corporation Commission to adopt rules for specifically outlined definitions.

ADDITIONAL COW
KOLODIN FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2457
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.
~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 40, chapter 2, article 6.2, Arizona Revised
3 Statutes, is amended by adding section 40-360.14, to read:

4 40-360.14. Exemption; new plants colocated with extra high
5 load factor customers

6 [A.] NOTWITHSTANDING SECTIONS 40-360.03 AND 40-360.07, A UTILITY,
7 AFTER PROVIDING THIRTY DAYS' WRITTEN NOTICE TO THE COMMISSION AND HOLDING
8 AT LEAST ONE PUBLIC COMMENT SESSION IN THE COUNTY WHERE THE RELEVANT PLANT
9 IS LOCATED, MAY CONSTRUCT A NEW PLANT WITHOUT FILING FOR OR RECEIVING A
10 CERTIFICATE OF ENVIRONMENTAL COMPATIBILITY FOR THE NEW PLANT IF ALL OF THE
11 FOLLOWING CONDITIONS ARE MET:

12 1. THE NEW PLANT IS COLOCATED WITH AN EXTRA HIGH LOAD FACTOR
13 CUSTOMER AND THE EXTRA HIGH LOAD FACTOR CUSTOMER HAS RECEIVED ALL
14 APPLICABLE ZONING ENTITLEMENTS.

15 2. THE UTILITY IS A PUBLIC SERVICE CORPORATION OR PUBLIC POWER
16 ENTITY DOING BUSINESS IN THIS STATE.

17 ~~[B. THE COMMISSION SHALL ADOPT RULES TO IMPLEMENT THIS SECTION THAT~~
18 ~~INCLUDE A DEFINITION FOR EACH OF THE FOLLOWING TERMS:~~

19 ~~1. COLOCATED WITH. THE COMMISSION'S DEFINITION MUST SPECIFY ONE OR~~
20 ~~BOTH OF THE FOLLOWING:~~

21 ~~(a) THE DISTANCE IN FEET OR PARCELS BETWEEN THE SITE OF AN EXTRA~~
22 ~~HIGH LOAD FACTOR CUSTOMER AND THE SITE OF A PLANT.~~

23 ~~(b) THE QUALITY OR NATURE OF THE ELECTRICAL INTERCONNECTION BETWEEN~~
24 ~~THE EXTRA HIGH LOAD FACTOR CUSTOMER AND THE PLANT.~~

25 ~~2. EXTRA HIGH LOAD FACTOR CUSTOMER. THE COMMISSION'S DEFINITION:~~

26 ~~(a) MUST SPECIFY THE PEAK OR AVERAGE ANNUAL OR MONTHLY ENERGY~~
27 ~~DEMAND OF THE USER THAT IS MEASURED IN MEGAWATTS OR MEGAWATT HOURS.~~

1 ~~(b) MAY NOT DISCRIMINATE BETWEEN DIFFERENT:~~
2 ~~(i) INDUSTRIES, SECTORS OR END USERS AND THE OWNERS OR OPERATORS OF~~
3 ~~END USERS OR THE PROPOSED LOCATIONS OF END USERS.~~
4 ~~(ii) END USERS IN ANY OTHER CAPACITY BEYOND THE USE OF ENERGY~~
5 ~~DEMAND AND OTHER ELECTRICAL-RELATED OPERATING NEEDS OR CHARACTERISTICS.~~
6 ~~C. THE COMMISSION MAY ADOPT DEFINITIONS FOR ANY OTHER TERMS THE~~
7 ~~COMMISSION DEEMS REASONABLE OR NECESSARY TO IMPLEMENT THIS SECTION.]~~

8 Enroll and engross to conform

9 Amend title to conform

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